# 歐盟 AI 法案　附件三（高風險 AI 系統清單）中英對照

Regulation (EU) 2024/1689, Annex III — English / 繁體中文

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來源：歐盟執委會 AI Act Service Desk 之條文頁（https://ai-act-service-desk.ec.europa.eu/en/ai-act/annex-3），並與 artificialintelligenceact.eu（https://artificialintelligenceact.eu/annex/3/）逐字對照；正式法律文本為歐盟公報（EUR-Lex）所載 Regulation (EU) 2024/1689（https://eur-lex.europa.eu/eli/reg/2024/1689/oj）。擷取日期：2026-11-04。EUR-Lex 站台以防護機制擋下自動下載，本檔未直接取自 EUR-Lex 頁面，請見文末核對事項。

本檔為非官方翻譯，僅供研讀與內部參考，不構成法律意見；一切以官方公報之英文（及各語言官方版本）為準。英文原文未經改寫，中文譯文緊接其後。

## 術語對照表（Glossary）

| English | 繁體中文（本檔用語） |
|---|---|
| AI system | AI 系統 |
| high-risk AI system | 高風險 AI 系統 |
| provider | 提供者 |
| deployer | 部署者 |
| natural person | 自然人 |
| public authority / public authorities | 公務機關 |
| body governed by public law | 公法人 |
| essential public assistance benefits and services | 基本公共援助給付與服務 |
| eligibility | （受領）資格 |
| grant, reduce, revoke, or reclaim | 核給、減少、撤銷或追回 |
| intended purpose | 預期用途 |
| instructions for use | 使用說明 |
| human oversight | 人為監督 |
| profiling | 剖析 |
| derogation | 例外（減損）規定 |
| preparatory task | 準備性任務 |
| narrow procedural task | 狹義程序性任務 |
| fundamental rights impact assessment | 基本權利影響評估 |
| market surveillance authority | 市場監督機關 |

| | |
|---|---|
| serious incident | 重大事故 |
| logs | 日誌 |
| the Union / Member State | 歐盟 / 會員國 |
| law enforcement authorities | 執法機關 |
| biometric identification / verification / categorisation | 生物辨識 / 驗證 / 分類 |
| emotion recognition | 情緒辨識 |
| safety component | 安全組件 |
| Annex III | 附件三 |

# 第一部分　附件三全文（Annex III）

## ANNEX III　High-risk AI systems referred to in Article 6(2)

## 附件三　第 6 條第 2 項所稱之高風險 AI 系統

High-risk AI systems pursuant to Article 6(2) are the AI systems listed in any of the following areas:

> 依第 6 條第 2 項，高風險 AI 系統為列於下列任一領域之 AI 系統：

1. Biometrics, in so far as their use is permitted under relevant Union or national law:

> 1. 生物辨識，以其使用依相關歐盟法或會員國國內法為許可者為限：

(a) remote biometric identification systems.

> (a) 遠端生物辨識系統。

This shall not include AI systems intended to be used for biometric verification the sole purpose of which is to confirm that a specific natural person is the person he or she claims to be;

> 此不包括預期用於生物辨識驗證、且其唯一目的為確認特定自然人確為其所自稱之人的 AI 系統；

(b) AI systems intended to be used for biometric categorisation, according to sensitive or protected attributes or characteristics based on the inference of those attributes or characteristics;

> (b) 預期用於依敏感或受保護之屬性或特徵、並基於對該等屬性或特徵之推論而進行生物辨識分類的 AI 系統；

(c) AI systems intended to be used for emotion recognition.

> (c) 預期用於情緒辨識的 AI 系統。

2. Critical infrastructure: AI systems intended to be used as safety components in the management and operation of critical digital infrastructure, road traffic, or in the supply of water, gas, heating or electricity.

> 2. 關鍵基礎設施：預期作為關鍵數位基礎設施、道路交通，或水、瓦斯、供暖、電力供應之管理與運作中的安全組件而使用的 AI 系統。

3. Education and vocational training:

3. 教育與職業訓練：

(a) AI systems intended to be used to determine access or admission or to assign natural persons to educational and vocational training institutions at all levels;

(a) 預期用於決定自然人進入或入學各級教育及職業訓練機構，或將自然人分派至該等機構的 AI 系統；

(b) AI systems intended to be used to evaluate learning outcomes, including when those outcomes are used to steer the learning process of natural persons in educational and vocational training institutions at all levels;

(b) 預期用於評估學習成果的 AI 系統，包括該等成果被用來引導各級教育及職業訓練機構中自然人之學習歷程的情形；

(c) AI systems intended to be used for the purpose of assessing the appropriate level of education that an individual will receive or will be able to access, in the context of or within educational and vocational training institutions at all levels;

(c) 預期用於在各級教育及職業訓練機構之情境中或機構內，評估個人將接受或將能取得之適當教育程度的 AI 系統；

(d) AI systems intended to be used for monitoring and detecting prohibited behaviour of students during tests in the context of or within educational and vocational training institutions at all levels.

(d) 預期用於在各級教育及職業訓練機構之情境中或機構內，於考試期間監測並偵測學生違規行為的 AI 系統。

4. Employment, workers' management and access to self-employment:

4. 就業、勞工管理及自營工作之取得：

(a) AI systems intended to be used for the recruitment or selection of natural persons, in particular to place targeted job advertisements, to analyse and filter job applications, and to evaluate candidates;

(a) 預期用於招募或甄選自然人的 AI 系統，特別是用於投放定向職缺廣告、分析與篩選求職申請，以及評估應徵者；

(b) AI systems intended to be used to make decisions affecting terms of work-related relationships, the promotion or termination of work-related contractual relationships, to allocate tasks based on individual behaviour or personal traits or characteristics or to monitor and evaluate the performance and behaviour of persons in such relationships.

(b) 預期用於作成影響勞動關係條件、勞動契約關係之晉升或終止的決定，依個人行為或個人特質或特徵分派工作，或監測與評估該等關係中人員之績效與行為的 AI 系統。

5. Access to and enjoyment of essential private services and essential public services and benefits:

5. 取得並享用基本私人服務、基本公共服務及公共給付：

(a) AI systems intended to be used by public authorities or on behalf of public authorities to evaluate the eligibility of natural persons for essential public assistance benefits and services, including healthcare services, as well as to grant, reduce, revoke, or reclaim such benefits and services;

(a) 預期由公務機關或代表公務機關使用，以評估自然人是否符合基本公共援助給付與服務（包括醫療照護服務）之資格，以及核給、減少、撤銷或追回該等給付與服務的 AI 系統；

(b) AI systems intended to be used to evaluate the creditworthiness of natural persons or establish their credit score, with the exception of AI systems used for the purpose of detecting financial fraud;

(b) 預期用於評估自然人之信用度或建立其信用評分的 AI 系統，但用於偵測金融詐欺目的之 AI 系統除外；

(c) AI systems intended to be used for risk assessment and pricing in relation to natural persons in the case of life and health insurance;

(c) 預期用於人壽及健康保險情形中，與自然人相關之風險評估與定價的 AI 系統；

(d) AI systems intended to evaluate and classify emergency calls by natural persons or to be used to dispatch, or to establish priority in the dispatching of, emergency first response services, including by police, firefighters and medical aid, as well as of emergency healthcare patient triage systems.

(d) 預期用於評估與分類自然人所撥打之緊急電話，或用於派遣緊急第一線應變服務（包括警察、消防及醫療救護）或決定其派遣優先順序的 AI 系統，以及緊急醫療照護之病患檢傷分類系統。

6. Law enforcement, in so far as their use is permitted under relevant Union or national law:

6. 執法，以其使用依相關歐盟法或會員國國內法為許可者為限：

(a) AI systems intended to be used by or on behalf of law enforcement authorities, or by Union institutions, bodies, offices or agencies in support of law enforcement authorities or on their behalf to assess the risk of a natural person becoming the victim of criminal offences;

(a) 預期由執法機關或代表執法機關使用，或由歐盟機構、團體、辦事處或機關為支援執法機關或代表其使用，以評估自然人成為刑事犯罪被害人之風險的 AI 系統；

(b) AI systems intended to be used by or on behalf of law enforcement authorities or by Union institutions, bodies, offices or agencies in support of law enforcement authorities as polygraphs or similar tools;

(b) 預期由執法機關或代表執法機關使用，或由歐盟機構、團體、辦事處或機關為支援執法機關而使用，作為測謊儀或類似工具的 AI 系統；

(c) AI systems intended to be used by or on behalf of law enforcement authorities, or by Union institutions, bodies, offices or agencies, in support of law enforcement authorities to evaluate the reliability of evidence in the course of the investigation or prosecution of criminal offences;

(c) 預期由執法機關或代表執法機關使用，或由歐盟機構、團體、辦事處或機關為支援執法機關而使用，以在刑事犯罪之調查或追訴過程中評估證據可靠性的 AI 系統；

(d) AI systems intended to be used by law enforcement authorities or on their behalf or by Union institutions, bodies, offices or agencies in support of law enforcement authorities for assessing the risk of a natural person offending or re-offending not solely on the basis of the profiling of natural persons as referred to in Article 3(4) of Directive (EU) 2016/680, or to assess personality traits and characteristics or past criminal behaviour of natural persons or groups;

(d) 預期由執法機關或代表執法機關使用，或由歐盟機構、團體、辦事處或機關為支援執法機關而使用，以評估自然人犯罪或再犯之風險（而非僅依據指令（歐盟）2016/680 第 3 條第 4 款所稱對自然人之剖析），或評估自然人或群體之人格特質與特徵或過往犯罪行為的 AI 系統；

(e) AI systems intended to be used by or on behalf of law enforcement authorities or by Union institutions, bodies, offices or agencies in support of law enforcement authorities for the profiling of natural persons as referred to in Article 3(4) of Directive (EU) 2016/680 in the course of the detection, investigation or prosecution of criminal offences.

(e) 預期由執法機關或代表執法機關使用，或由歐盟機構、團體、辦事處或機關為支援執法機關而使用，以在刑事犯罪之偵測、調查或追訴過程中，進行指令（歐盟）2016/680 第 3 條第 4 款所稱對自然人之剖析的 AI 系統。

7. Migration, asylum and border control management, in so far as their use is permitted under relevant Union or national law:

7. 移民、庇護及邊境管制管理，以其使用依相關歐盟法或會員國國內法為許可者為限：

(a) AI systems intended to be used by or on behalf of competent public authorities or by Union institutions, bodies, offices or agencies as polygraphs or similar tools;

(a) 預期由主管公務機關或代表其使用，或由歐盟機構、團體、辦事處或機關使用，作為測謊儀或類似工具的 AI 系統；

(b) AI systems intended to be used by or on behalf of competent public authorities or by Union institutions, bodies, offices or agencies to assess a risk, including a security risk, a risk of irregular migration, or a health risk, posed by a natural person who intends to enter or who has entered into the territory of a Member State;

(b) 預期由主管公務機關或代表其使用，或由歐盟機構、團體、辦事處或機關使用，以評估有意入境或已入境會員國領土之自然人所構成之風險（包括安全風險、非正規移民風險或健康風險）的 AI 系統；

(c) AI systems intended to be used by or on behalf of competent public authorities or by Union institutions, bodies, offices or agencies to assist competent public authorities for the examination of applications for asylum, visa or residence permits and for associated complaints with regard to the eligibility of the natural persons applying for a status, including related assessments of the reliability of evidence;

> (c) 預期由主管公務機關或代表其使用，或由歐盟機構、團體、辦事處或機關使用，以協助主管公務機關審查庇護、簽證或居留許可之申請及相關申訴，就申請人是否符合取得某身分之資格進行判斷（包括對證據可靠性的相關評估）的 AI 系統；

(d) AI systems intended to be used by or on behalf of competent public authorities, or by Union institutions, bodies, offices or agencies, in the context of migration, asylum or border control management, for the purpose of detecting, recognising or identifying natural persons, with the exception of the verification of travel documents.

> (d) 預期由主管公務機關或代表其使用，或由歐盟機構、團體、辦事處或機關在移民、庇護或邊境管制管理之情境中，為偵測、辨認或識別自然人而使用的 AI 系統，但旅行證件之查驗除外。

8. Administration of justice and democratic processes:

> 8. 司法行政及民主程序：

(a) AI systems intended to be used by a judicial authority or on their behalf to assist a judicial authority in researching and interpreting facts and the law and in applying the law to a concrete set of facts, or to be used in a similar way in alternative dispute resolution;

> (a) 預期由司法機關或代表司法機關使用，以協助司法機關查找與解釋事實及法律，並將法律適用於具體事實，或以類似方式用於替代性爭端解決的 AI 系統；

(b) AI systems intended to be used for influencing the outcome of an election or referendum or the voting behaviour of natural persons in the exercise of their vote in elections or referenda. This does not include AI systems to the output of which natural persons are not directly exposed, such as tools used to organise, optimise or structure political campaigns from an administrative or logistical point of view.

> (b) 預期用於影響選舉或公民投票之結果，或影響自然人於選舉或公民投票中行使投票權時之投票行為的 AI 系統。此不包括自然人不會直接接觸其輸出結果的 AI 系統，例如從行政或後勤角度用於組織、優化或結構化政治競選活動的工具。

# 第二部分　相關條文（節譯）

以下僅收錄理解附件三所需之條文要項。未收錄之項次以「（略）」標示，並非條文本身之內容。

## 第 6 條　高風險 AI 系統之分類規則（節譯：第 1 至 4 項）

**Article 6　Classification rules for high-risk AI systems**

1. Irrespective of whether an AI system is placed on the market or put into service independently of the products referred to in points (a) and (b), that AI system shall be considered to be high-risk where both of the following conditions are fulfilled:

1. 不論 AI 系統是否獨立於(a)款與(b)款所述產品而被投放市場或投入使用，當下列兩項條件皆成立時，該 AI 系統應被視為高風險：

(a) the AI system is intended to be used as a safety component of a product, or the AI system is itself a product, covered by the Union harmonisation legislation listed in Annex I;

(a) 該 AI 系統預期作為附件一所列歐盟調和立法所涵蓋產品的安全組件，或該 AI 系統本身即為該等立法所涵蓋之產品；

(b) the product whose safety component pursuant to point (a) is the AI system, or the AI system itself as a product, is required to undergo a third-party conformity assessment, with a view to the placing on the market or the putting into service of that product pursuant to the Union harmonisation legislation listed in Annex I.

(b) 其安全組件為(a)款所稱 AI 系統之產品，或作為產品之該 AI 系統本身，依附件一所列歐盟調和立法，為將該產品投放市場或投入使用，須接受第三方符合性評鑑。

2. In addition to the high-risk AI systems referred to in paragraph 1, AI systems referred to in Annex III shall be considered to be high-risk.

2. 除第 1 項所稱之高風險 AI 系統外，附件三所列之 AI 系統亦應被視為高風險。

3. By derogation from paragraph 2, an AI system referred to in Annex III shall not be considered to be high-risk where it does not pose a significant risk of harm to the health, safety or fundamental rights of natural persons, including by not materially influencing the outcome of decision making.

3. 作為第 2 項之例外，附件三所列之 AI 系統，如未對自然人之健康、安全或基本權利構成重大危害風險（包括未實質影響決策結果），不應被視為高風險。

The first subparagraph shall apply where any of the following conditions is fulfilled:

符合下列任一條件時，適用前段規定：

(a) the AI system is intended to perform a narrow procedural task;

(a) 該 AI 系統預期執行的是狹義的程序性任務；

(b) the AI system is intended to improve the result of a previously completed human activity;

(b) 該 AI 系統預期用於改善先前已完成之人類活動的成果；

(c) the AI system is intended to detect decision-making patterns or deviations from prior decision-making patterns and is not meant to replace or influence the previously completed human assessment, without proper human review; or

(c) 該 AI 系統預期用於偵測決策模式或偏離先前決策模式之情形，且不意在未經適當人工審查而取代或影響先前已完成的人類評估；或

(d) the AI system is intended to perform a preparatory task to an assessment relevant for the purposes of the use cases listed in Annex III.

> (d) 該 AI 系統預期執行的是與附件三所列使用情境相關之評估的準備性任務。

Notwithstanding the first subparagraph, an AI system referred to in Annex III shall always be considered to be high-risk where the AI system performs profiling of natural persons.

> 儘管有前段規定，附件三所列之 AI 系統如對自然人進行剖析，仍應一律被視為高風險。

4. A provider who considers that an AI system referred to in Annex III is not high-risk shall document its assessment before that system is placed on the market or put into service. Such provider shall be subject to the registration obligation set out in Article 49(2). Upon request of national competent authorities, the provider shall provide the documentation of the assessment.

> 4. 提供者如認為附件三所列之 AI 系統並非高風險，應於該系統被投放市場或投入使用之前，將其評估記錄成文件。該提供者須受第 49 條第 2 項所定登記義務之拘束。經國家主管機關請求，提供者應提供該評估之文件。

（略）第 5 項（執委會應於 2026 年 2 月 2 日前提供本條實務執行指引）、第 6 至 8 項（執委會得以授權法規增刪第 3 項第二段之條件）。另：AI Act Service Desk 頁面於第 1 項之後顯示「1a、1b、1c」三項標示為 NEW 的段落，此三項不在 2024 年公報原文之中，本檔未予翻譯，詳見文末核對事項。

## 第 26 條　高風險 AI 系統部署者之義務（節譯）

**Article 26　Obligations of deployers of high-risk AI systems**

1. Deployers of high-risk AI systems shall take appropriate technical and organisational measures to ensure they use such systems in accordance with the instructions for use accompanying the systems, pursuant to paragraphs 3 and 6.

> 1. 高風險 AI 系統之部署者，應採取適當的技術性與組織性措施，確保依該等系統隨附之使用說明使用之，並依第 3 項及第 6 項辦理。

2. Deployers shall assign human oversight to natural persons who have the necessary competence, training and authority, as well as the necessary support.

> 2. 部署者應將人為監督指派予具備必要能力、訓練與權限，並獲得必要支援之自然人。

4. Without prejudice to paragraphs 1 and 2, to the extent the deployer exercises control over the input data, that deployer shall ensure that input data is relevant and sufficiently representative in view of the intended purpose of the high-risk AI system.

> 4. 在不影響第 1 項及第 2 項的情況下，部署者於對輸入資料具有控制權之範圍內，應確保輸入資料就該高風險 AI 系統之預期用途而言具相關性且具足夠代表性。

5. Deployers shall monitor the operation of the high-risk AI system on the basis of the instructions for use and, where relevant, inform providers in accordance with Article 72. Where deployers have reason to consider that the use of the high-risk AI system in accordance with the instructions may result in that AI system presenting a risk within the meaning of Article 79(1), they shall, without undue delay, inform the provider or distributor and the relevant market surveillance authority, and shall suspend the use of that system. Where deployers have identified a serious incident, they shall also immediately inform first the provider, and then the importer or distributor and the relevant market surveillance authorities of that incident. If the deployer is not able to reach the provider, Article 73 shall apply mutatis mutandis. This obligation shall not cover sensitive operational data of deployers of AI systems which are law enforcement authorities.

> 5. 部署者應依使用說明監測高風險 AI 系統之運作，並於相關時依第 72 條通知提供者。部署者如有理由認為，依使用說明使用該高風險 AI 系統，可能導致該 AI 系統呈現第 79 條第 1 項所稱之風險，應無不當延遲地通知提供者或經銷者及相關市場監督機關，並應暫停使用該系統。部署者如發現重大事故，亦應立即先通知提供者，再通知進口者或經銷者及相關市場監督機關。如部署者無法聯繫提供者，準用第 73 條。此項義務不涵蓋身為執法機關之 AI 系統部署者的敏感營運資料。

6. Deployers of high-risk AI systems shall keep the logs automatically generated by that high-risk AI system to the extent such logs are under their control, for a period appropriate to the intended purpose of the high-risk AI system, of at least six months, unless provided otherwise in applicable Union or national law, in particular in Union law on the protection of personal data.

> 6. 高風險 AI 系統之部署者，就該高風險 AI 系統自動產生之日誌，於其在部署者控制之範圍內，應保存與該高風險 AI 系統預期用途相稱之期間，且至少六個月，但適用之歐盟法或國內法（特別是歐盟個人資料保護法）另有規定者，不在此限。

8. Deployers of high-risk AI systems that are public authorities, or Union institutions, bodies, offices or agencies shall comply with the registration obligations referred to in Article 49. When such deployers find that the high-risk AI system that they envisage using has not been registered in the EU database referred to in Article 71, they shall not use that system and shall inform the provider or the distributor.

> 8. 身為公務機關，或歐盟機構、團體、辦事處或機關之高風險 AI 系統部署者，應遵守第 49 條所定登記義務。此等部署者如發現其擬使用之高風險 AI 系統尚未登記於第 71 條所稱之歐盟資料庫，不得使用該系統，並應通知提供者或經銷者。

11. Without prejudice to Article 50 of this Regulation, deployers of high-risk AI systems referred to in Annex III that make decisions or assist in making decisions related to natural persons shall inform the natural persons that they are subject to the use of the high-risk AI system. For high-risk AI systems used for law enforcement purposes Article 13 of Directive (EU) 2016/680 shall apply.

> 11. 在不影響本規則第 50 條的情況下，附件三所列高風險 AI 系統之部署者，如就自然人作成決定或協助作成決定，應告知該等自然人其正受該高風險 AI 系統之使用所影響。用於執法目的之高風險 AI 系統，適用指令（歐盟）2016/680 第 13 條。

12. Deployers shall cooperate with the relevant competent authorities in any action those authorities take in relation to the high-risk AI system in order to implement this Regulation.

12. 部署者應就主管機關為執行本規則而對該高風險 AI 系統採取之任何行動，與相關主管機關合作。

（略）第 3 項、第 7 項、第 9 項、第 10 項（後者為執法機關使用事後遠端生物辨識系統之規定，與本案無直接關係）。

## 第 27 條　高風險 AI 系統之基本權利影響評估（節譯：第 1 至 3 項）

**Article 27　Fundamental rights impact assessment for high-risk AI systems**

1. Prior to deploying a high-risk AI system referred to in Article 6(2), with the exception of high-risk AI systems intended to be used in the area listed in point 2 of Annex III, deployers that are bodies governed by public law, or are private entities providing public services, and deployers of high-risk AI systems referred to in points 5 (b) and (c) of Annex III, shall perform an assessment of the impact on fundamental rights that the use of such system may produce. For that purpose, deployers shall perform an assessment consisting of:

1. 在部署第 6 條第 2 項所稱之高風險 AI 系統之前（但預期用於附件三第 2 點所列領域之高風險 AI 系統除外），屬公法人之部署者、提供公共服務之私人實體，以及附件三第 5 點(b)款與(c)款所稱高風險 AI 系統之部署者，應就使用該系統可能對基本權利造成的影響進行評估。為此，部署者應進行由下列各項構成之評估：

(a) a description of the deployer's processes in which the high-risk AI system will be used in line with its intended purpose;

(a) 說明部署者將依預期用途使用該高風險 AI 系統之流程；

(b) a description of the period of time within which, and the frequency with which, each high-risk AI system is intended to be used;

(b) 說明各高風險 AI 系統預期使用之期間與頻率；

(c) the categories of natural persons and groups likely to be affected by its use in the specific context;

(c) 說明在具體情境中可能受其使用影響之自然人及群體的類別；

(d) the specific risks of harm likely to have an impact on the categories of natural persons or groups of persons identified pursuant to point (c) of this paragraph, taking into account the information given by the provider pursuant to Article 13;

(d) 考量提供者依第 13 條所提供之資訊，說明可能對依本項(c)款所識別之自然人或群體類別造成影響之具體危害風險；

(e) a description of the implementation of human oversight measures, according to the instructions for use;

(e) 說明依使用說明所實施之人為監督措施；

(f) the measures to be taken in the case of the materialisation of those risks, including the arrangements for internal governance and complaint mechanisms.

> (f) 說明上述風險成真時應採取之措施，包括內部治理安排與申訴機制。

2. The obligation laid down in paragraph 1 applies to the first use of the high-risk AI system. The deployer may, in similar cases, rely on previously conducted fundamental rights impact assessments or existing impact assessments carried out by provider. If, during the use of the high-risk AI system, the deployer considers that any of the elements listed in paragraph 1 has changed or is no longer up to date, the deployer shall take the necessary steps to update the information.

> 2. 第 1 項所定義務適用於該高風險 AI 系統的首次使用。部署者於類似情形下，得援用先前已進行之基本權利影響評估，或提供者已進行之既有影響評估。如部署者於使用該高風險 AI 系統期間，認為第 1 項所列任一要素已有變動或不再是最新資訊，應採取必要步驟更新該等資訊。

3. Once the assessment referred to in paragraph 1 of this Article has been performed, the deployer shall notify the market surveillance authority of its results, submitting the filled-out template referred to in paragraph 5 of this Article as part of the notification. In the case referred to in Article 46(1), deployers may be exempt from that obligation to notify.

> 3. 第 1 項所稱之評估完成後，部署者應向市場監督機關通報其結果，並於通報時提交本條第 5 項所稱已填妥之範本。於第 46 條第 1 項所定情形，部署者得免除該通報義務。

（略）第 4 項（可與資料保護影響評估互相引用）、第 5 項（AI 辦公室應制定問卷範本）；Service Desk 頁面將此兩項標示為 AMENDED，未翻譯。

## 核對事項

1. 本檔文字取自歐盟執委會 AI Act Service Desk 頁面，因 EUR-Lex 無法自動下載；附件三第 5 點(a)款已與 artificialintelligenceact.eu 版本逐字比對一致，但仍建議以 EUR-Lex 官方 PDF 再核一次。

2. Service Desk 頁面含「NEW / AMENDED」標示與第 4a 條，顯示該站可能同步呈現修正提案或後續修訂的內容；本檔僅譯公報原文已有之項次，使用前請確認現行有效版本與各項義務的適用日期。

3. 中文為研讀用譯文，法律用語已盡量保守對應；如需引用於正式文件，請交由具法律專業者覆核。